

Court No. - 42

Case :- WRIT - C No. - 4421 of 2023

Petitioner :- Arvind Kumar Bajpai

Respondent :- Pachhimanchal Vidyut Vitran Nigam Ltd. Through Its Executive Engineer And 3 Others

Counsel for Petitioner :- Krishna Kant Dubey, Santosh Kumar Dubey

Counsel for Respondent :- C.S.C., A.S.G.I., Abhishek Srivastava

Hon'ble Suneet Kumar, J.

Hon'ble Rajendra Kumar-IV, J.

Heard learned counsel for the petitioner and Sri Abhishek Srivastava, learned counsel appearing for the first respondent.

The relief claimed by the petitioner, herein, is seeking a direction to the first respondent to provide electricity connection to the petitioner in the premises being flat no. 661 Sector-29 Noida, District Gautambudh Nagar.

Attention of the Court has been drawn to the communication dated 27 January 2023, issued to the petitioner by the Sub Divisional Officer, wherein, reliance has been placed on para-4.4(a)(1) of the Electricity Supply Code 2005 (for short 'Code 2005'), declining electricity connection to the petitioner on the ground that the document of occupation submitted by the petitioner of the premises is an agreement to sell dated 30 September 2013.

It is submitted that the agreement to sell is a registered document with possession of the premises in question, accordingly, it is submitted that the petitioner has submitted 'proof of occupancy', mandated in para 4.4.(a)(1) of the Code 2005.

Learned counsel for the respondent does not dispute that the agreement to sell is a registered document with possession and occupation right of the property.

Learned counsel for the petitioner submits that petitioner would be satisfied in the event of electricity connection with prepaid meter facility being installed in the premises.

In view thereof, the writ petition is disposed of directing the Executive Engineer of the first respondent to process the application of the petitioner and provide electricity connection within three days from the date of filing of certified copy of this order before the above noted authority, provided there is no impediment.

Learned counsels for the respective parties to communicate the order for compliance.

Order Date :- 8.2.2023

S.Prakash